

25STCV22044 25STCV22044

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-08-28

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Case Number: 25STCV22044 Hearing Date: August 28, 2026 Dept: 512

HEARING DATE: Fri., August 28, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: De

la Torre v. TDI Properties, Inc., et al. COMP. FILED: 07-25-25

CASE NUMBER: 25STCV22044

FAC FILED: 10-13-25

NOTICE: OK

PROCEEDINGS: MOTIONS TO COMPEL

FURTHER RESPONSES TO FORM INTERROGATORIES, SPECIAL INTERROGATORIES, AND
PRODUCTION OF DOCUMENTS

MOVING PARTY: Plaintiff

Juan De La Torre

RESP. PARTY: Defendant

TDI Properties, Inc.

MOTION TO COMPEL FURTHER RESPONSES TO INTERROGATORIES AND PRODUCTION OF
DOCUMENTS

(CCP §§ 2030.300, 2031.310)

TENTATIVE RULING:

Plaintiff Juan De La Torre's Motion to

Compel Further Responses to Form Interrogatories, Set One, is DENIED.

Plaintiff Juan De La Torre's Motion to
Compel Responses to Special Interrogatories, Set One, is DENIED.

Plaintiff Juan De La Torre's Motion to
Compel Further Responses to Request for Production of Documents and Things, Set
One, is DENIED.

Moving party is to give
notice of ruling.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITIONS: Filed
on August 13, 2026 ☐ Late ☐ None

REPLY: Filed
on August 20, 2026 ☐ Late ☐ None

ANALYSIS:

I.

Background

On July 25, 2025, Plaintiff Juan De La
Torre ("Plaintiff") filed the instant action against Defendants TDI Properties,
Inc. ("TDI Properties") and 4144 Adams, LP ("4144 Adams") ("Defendants") and
Does 1-100, alleging eight causes of action arising out of property rental
agreement between the parties.

On October 13, 2025, Plaintiff filed
the instant action against Defendants and Does 1-100, alleging eight causes of
action arising out of property rental agreement between the parties.

On January 9, 2026, Defendants filed an Answer.

On May 11, 2026, Plaintiff filed the instant Motion to Compel Further Responses to Form Interrogatories, Set One ("FROGs Motion"); Motion to Compel Responses to Special Interrogatories, Set One ("SROGs Motion"); and Motion to Compel Further Responses to Request for Production of Documents and Things, Set One ("RPDs Motion") (the "Motions") against TDI Properties and accompanying requests for sanctions.

On June 10, 2026, the Court held and completed an Informal Discovery Conference ("IDC") with the parties. The Court stated: "Defendant is to file Supplemental Responses by 7/10/2026. If any outstanding issues remain, moving party is to file a supplemental brief outlining the issues. The Supplemental Brief is to be filed 16 days prior to the Motion to Compel." (6/10/26 Order.)

On August 13, 2026, TDI Properties filed Oppositions to the Motions.

On August 20, 2026, Plaintiff filed a Consolidated Reply to the Motions.

On August 21, 2026, the Court continued the hearing on two of the Motions.

II.

Procedural Issues

As an initial matter, the Court finds the Motions are all untimely filed and served.

Notice of a motion to compel further discovery must be given within 45 days of service of the verified response, otherwise, the propounding party waives any right to compel a further response. (Code Civ. Proc., §§ 2030.300, subd. (c); 2031.310, subd. (c).)

Here, Plaintiff states that TDI

Properties served verified responses or responses and objections to the subject discovery on February 27, 2026. (Motions, Robinson Decls., ¶ 6.) As such, the deadline to file notices of motions to compel further discovery was April 13, 2026. (Code Civ. Proc., §§ 2030.300, subd. (c); 2031.310, subd. (c)). However, the instant Motions were all filed and served on May 11, 2026.

As such, the Court finds Plaintiff has waived any right to compel a further response. (Code Civ. Proc., §§ 2030.300, subd. (c); 2031.310, subd. (c).)

Thus, the Motions are DENIED.

III.

Conclusion

& Order

For the foregoing reasons, Plaintiff Juan De La Torre's Motion to Compel Further Responses to Form Interrogatories, Set One, is DENIED.

Plaintiff Juan De La Torre's Motion to Compel Responses to Special Interrogatories, Set One, is DENIED.

Plaintiff Juan De La Torre's Motion to Compel Further Responses to Request for Production of Documents and Things, Set One, is DENIED.

Moving party is to give notice of ruling.